in India. The Centre can lay down standards for the quality of environment, standards for emission or discharge of environmental pollutants from any source whatsoever, and prepare and prescribe manuals, codes or guides relating to prevention, control and abatement of environmental pollution. It can also place restrictions on areas in which any industries, operations or processes shall not be carried out or be carried out subject to safeguards prescribed. In the exercise of these powers, the Central government can bring in industrial licensing or impose any kind of prohibitory orders on production of goods and services. It also has sweeping powers under Section 5 of the Act to issue directions to ‘any person, officer or any authority’ that they would be bound to comply with. There are apparently no constraints on the authority of the Central government to issue directions.

Every person carrying on any ‘industry, operation or process’ has been prohibited to ‘discharge or emit or permit to be discharged or emitted any environmental pollutant in excess of such standards as may be prescribed’. In case the discharge of an environmental pollutant occurs in excess of prescribed standards, the person responsible is bound to take necessary action to mitigate the environmental pollution caused as a result. Wherever such a discharge is expected to occur, the person responsible has to take necessary action to prevent and mitigate such discharge. There is a clear responsibility imposed by the law on the person in charge of any process or establishment that might lead to discharge of environmental pollution.

The government and authorities have also been empowered to act in situations where such occurrence of pollution takes place. There is an obligation on the person carrying on the industry, operation or process to intimate the fact of such an occurrence or apprehension to the authorities. The authorities have been empowered to take remedial measures. The person responsible for occurrence of the pollution is bound to render all assistance and pay the expenses incurred by authorities on remedial